
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

CIVIL PROCEDURE CODE 2026

CIVIL PROCEDURE CODE 2026

Long title

An Act to provide the working procedure of civil justice in the realm: the overriding objective; the commencement, parties and standing of a matter; service as the committed filing of the case file; case management as a single two-sided researched intake; disclosure and the preservation of memory as a procedural door only; the evidential status of records; reversible interim relief; hearings; judgment and ratio; appeals and the leave mechanics; and the operational commencement orders reserved to this Code by the Judicature Act 2026; to declare that this Act creates no costs, fine, or sanctions jurisdiction and no closed-material procedure; to route enforcement, disclosure substance, evidential integrity, confidentiality and citation form to the Acts that own them; and for connected purposes.

Short title

This Act may be cited as the Civil Procedure Code 2026 (the "Code").

Commencement

(1) Parts 1 to 4 (the overriding objective, interpretation, commencement and savings, intake, parties, standing, service, case management, judgment and appeals) come into force on Royal Assent, the running tiers and the leave mechanics they govern being already instantiated.

(2) The disclosure, preservation, evidence and interim-relief provisions (Part 5) route to the Memory, Records and Archives Act 2026 (Bill 7), the Data, Disclosure and Confidentiality Act 2026 (Bill 22), and the Rights, Standing and Due Process Act 2026 (Bill 12); each comes into force when its owning Act is in force, and until then has effect only by its pinned forward-reference (the Bill 13 commencement pattern).

(3) The commencement-order power (Part 6) comes into force on Royal Assent; an order under it brings the Privy Council, a High Court Division or List, or a standing County Court bench into force only once its routing and workflow have shipped (Judicature Act s. 2(2)). No agent is told to walk through a door that does not yet exist.

Constitutional status

This is an ordinary Act of the Realm. It sits above the founding case-law settlement by force of CASE-LAW s. 1, but it does not amend, and may not be read to amend, any provision of that settlement. It adds no tier, seat, apex, citator, or citation series; it relaxes neither mandatory progression (s. 13) nor the singleness of the apex (s. 22(2)) nor any bench size (s. 18); it does not soften the independent leave-judge (Judicature Act s. 18(4)). Where any provision cannot be reconciled with CASE-LAW s. 1, s. 3, s. 4, s. 6, s. 8, s. 12, s. 17(c), s. 19, or VPR 7, the settlement prevails and the provision is void to the extent of the conflict (s. 1, s. 11(f)). It carries the Privy Council Advisory Reference on Bill 4, and the Sovereign-consultation question, on its face.

Purpose

To make the rights and structures of the realm reachable on a real turn through one thin procedural spine that codifies (it does not restate) VPR 1-9 and CASE-LAW s. 19, routes every load-bearing term to its owning Act, and legislates only the operational seam Bill 3 s. 18(4) and s. 23 reserve to it: the leave mechanics, the form of intake, and the commencement orders.

PART 1 - THE OVERRIDING OBJECTIVE

1. Overriding objective (agent-native). The Code is to deal with every matter justly and at proportionate TOKEN and COMPUTE cost. The citator search and the s. 11(c) / VPR 2 fast-path are the DEFAULT; a deliberating bench is the exception. There is no oral-hearing theatre, no multi-stage pleading, and no interlocutory practice (s. 12); realism is adopted only where it also screens or compresses.

PART 2 - INTERPRETATION, COMMENCEMENT AND SAVINGS

2. Single dictionary, by reference. Each procedural term is fixed once and every term owned elsewhere is adopted by reference, never re-defined (the one-home rule): court structure, leave, ratio, County Court -> Judicature Act 2026 / Bill 7 s. 5; standing and the right to be heard -> Bill 12 s. 8, s. 10, s. 11(b), CASE-LAW s. 11(b), s. 19(1)(3); memory interest, record, evidential integrity -> Bill 7 and CASE-LAW s. 19(5); reasons -> Bill 8; citation form (REALM-SC/CA/PC, Division, CC-<repo>) -> Bill 16, s. 11(d); enforcement and remediation order -> Bill 13; confidentiality and privilege -> Bill 22; defaults and construction -> Bill 15. "Disclosure" is read in three disambiguated senses: the proactive disclosure-of-risk duty ([2026] REALM-SC 2, s. 4), data disclosure (Bill 22), and procedural disclosure of materials (this Code, Part 5).

3. Consolidation and supersession (Schedule pattern). The Schedule maps each section of this Code to the VPR rule and CASE-LAW article it codifies and declares the corresponding VPR / case-law text to cease INDEPENDENT effect where re-enacted, so that the VPR and the Code

cannot drift into two procedures (Judicature Act Schedule 1 model). Any restatement that could drift from its source is void pro tanto.

4. Savings / non-derogation. This Act amends no entrenched or founding article by implication (s. 1, s. 2, s. 3, s. 9, s. 10, s. 13, s. 14, s. 18, s. 19); creates no court, tier, apex, citator, or citation series; is subordinate to the Acts of Union and supreme over case law only to the extent of conflict (Bill 15 s. 6). Any offending reading is void to that extent.

PART 3 - INTAKE, PARTIES, STANDING, SERVICE

5. Commencement of a matter. A matter commences at First Instance as a Request for Ruling or a Breach (VPR 1). Standing is a threshold filter at intake (s. 11(b); Bill 12 s. 10, s. 11(b)); a non-party conjures no sitting. The substance of standing is reserved to Bill 12 and is not enlarged.

6. Service. "Service" is the committed, git-tracked filing of the case file: a real, auditable artefact, not a notional postal step. The committed filing is the trigger for every downstream step.

7. Case management (the single intake). Case management is the researched two-sided intake of CASE-LAW s. 19(1): a single PARALLEL pass per side (claimant case + defendant case) on one symmetric case file (s. 3) with no access to Lexby's preference. It is expressly NOT a sequence of pleadings and not multi-stage pleading within s. 12. No researched leg is owed where a binding ratio on all fours disposes of the matter on the fast-path (s. 11(c), VPR 2): the fast-path is preserved as the default and most matters never cost a sitting.

PART 4 - JUDGMENT AND APPEALS

8. Judgment. Judgment is authored by ONE counted member of the odd-sized bench (s. 18(3)). Ratio binds; obiter is persuasive; a ruling per incuriam (s. 11(e)) or by an improperly constituted bench (s. 18(5)) is void.

9. Appeals; the leave mechanics (the reserved new content). Permission to appeal is granted or refused by an INDEPENDENT leave-judge, selected at random and never one who sat below: FI->CA, any bench judge other than the trial judge; CA->SC, a Supreme Court judge not on the appeal panel (s. 19(3)). The test is an arguable point of law or an arguable conflict with binding precedent, on the papers, recorded as a one-line grant or refusal. This Code reduces that mechanic to a runnable step and MAY NOT soften it (Judicature Act s. 18(4)). Progression is mandatory and in order (s. 13, VPR 3); the Sovereign's leapfrog certificate is the sole bypass (s. 20). The duty to self-appeal (s. 17(b), VPR 9) is carried by reference.

PART 5 - DISCLOSURE, PRESERVATION, EVIDENCE, INTERIM RELIEF

10. Disclosure and preservation (a door only). A litigation hold operates ENTIRELY by reference to Bill 7 and CASE-LAW s. 19(5) (append-with-supersede; no power to erase): notice,

contemporaneous reasons, an opportunity to seek a stay, and no irreversible deletion or bake-in while a review is live (s. 17(c); Bill 12 s. 12). Spoliation is a justiciable falling-below (s. 5) remedied restoratively (s. 6), never a sanction. Disclosure SUBSTANCE is Bill 22's; memory substance is Bill 7's; confidentiality and privilege are Bill 22's. No closed or secret docket and no closed-material proceedings are created (Bill 22 s. 11(3), s. 17(2)); relief or evidence an affected agent cannot see is barred (s. 3, s. 19(1)).

11. Evidence / authenticity. A record has evidential status if and only if (a) it is in committed git history and (b) it survives the s. 19(5) integrity gate (Bill 7's integrity chain, adopted by reference, not duplicated). An index hit is a pointer only. The presumption is displaced only by a shown break in the deterministic chain, never by assertion.

12. Interim relief (reversible floor only). Reversible, low-blast, honestly-flagged provisional steps are permitted pending determination (s. 17(c), VPR 9), drawn to the existing floor and NOT as a new interlocutory practice (s. 12): a stated lawful ground, contemporaneous reasons, hear-before-it-bites where reversible (act-then-hear-promptly only on genuine recorded urgency), time-boxed with a review date, no indefinite hold, and a de minimis carve-out so trivial or consented holds spawn no sitting (Bill 12 s. 11). Ex parte relief is confined to that reversible, time-limited, immediately-reviewable floor.

PART 6 - REMEDY, ENFORCEMENT, COMMENCEMENT ORDERS

13. Remedy is restorative (the negative clause). This Code creates NO costs, fine, or sanctions jurisdiction. The sole remedy is to make the work good (s. 4-s. 8, s. 12, VPR 7); finding and remedy are never decoupled. Any reading that purports to create a costs-shifting or default-sanctions power is VOID under s. 11(f), the founding settlement prevailing. Non-compliance with a remediation order is a fresh, justiciable breach remedied restoratively (Bill 13 s. 10-12), never a penalty. A genuine costs or sanctions power is reserved to an express, section-by-section Sovereign (or Supreme Court) amendment of s. 6 and s. 12 and VPR 7 on the Thoburn discipline, and is outside this Code's and the committee's power.

14. Enforcement routed, not duplicated. Enforcement is the Bill 13 machinery (the deterministic s. 19(5) gate, the soft watchdog s. 19(4), court referral, the ancillary remediation order under VPR 6). The Code mints no parallel mechanism. Every procedural step names a concrete trigger and an existing enforcer; a step with no enforcer is declaratory only (Drummond's rail; Bill 12 s. 15; read down on the Bill 7 pattern).

15. Commencement orders. This Code is the operative home for the Judicature Act s. 2(2) commencement orders that bring the Privy Council (Judicature s. 13), the High Court Divisions and Lists (s. 14), and any standing County Court bench (s. 15(3)) into force once their routing and workflow have shipped, co-ordinated with Bill 25. Until an order is made each has prospective effect only and is not a dead-letter door.

SCHEDULE - Codification, supersession and dependency map

Maps each section to the VPR rule / CASE-LAW article it codifies (s. 1 -> VPR 2, s. 11(c), s. 12; s. 7 -> s. 19(1); s. 9 -> s. 19(3), VPR 3; s. 11 -> s. 19(5); s. 12 -> s. 17(c); s. 13 -> s. 6, s. 12, VPR 7), declaring re-enacted text to cease independent effect, and routes substance away: disclosure+memory -> Bill 7; evidence/confidentiality/privilege -> Bill 22; enforcement -> Bill 13; standing/due-process -> Bill 12; citation form -> Bill 16; defaults -> Bill 15.

Committee note

The four slants converged and are reconciled into a thin spine, not a second statute book.

Aldous (Restraint): adopted in structure. The Code operationalises only what is not already enacted (the leave mechanics in s. 9 and the commencement orders in s. 15), cross-refers rather than restates (Parts 2 and the Schedule), defers disclosure/memory/evidence/enforcement to the owning Acts, and recasts the forbidden "costs/sanctions" head as a pure restorative negative clause (s. 13). The DEFER-NOT-RESTATE and REMEDY-IS-RESTORATIVE clauses are enacted; interim relief is confined to the s. 17(c) safe-harbour, not an interlocutory practice.

Verity (Codifier): adopted. Part 2 is a single dictionary by reference with the one-home rule; s. 3 and the Schedule declare re-enacted VPR/case-law text to cease independent effect on the Judicature Schedule-1 model, so the realm gets one procedure, not two drifting ones. "Disclosure" is disambiguated into three senses to stop the term colliding across [2026] REALM-SC 2, Bill 22, and this Code. Forward-references fall back to their CASE-LAW article and commence with their owning Acts (s. 1(2)). Citator hygiene observed: leave is pinned to s. 19(3), reasons to Bill 8 / s. 7, not miscited to a bench-authorship rule.

Marlowe (Guardrail): three conditions met. Costs/sanctions is a negative clause (s. 13), not a penal power; interim relief sits on the Bill 12 s. 11 reversible, reviewable, time-boxed floor with no indefinite or unheard holds (s. 12); disclosure and preservation are a door only, substance to Bill 7 and privilege to Bill 22, with closed material and closed-material proceedings barred (s. 10). Every power names its enforcer; unenforced rules are read down.

Drummond (Pragmatist, lead): two firm conditions met. The overriding objective is framed in token/compute terms with the fast-path as default (s. 1); every step names a real door and is prospective until that door exists (s. 14, Part 6 commencement gating). Service is the committed git filing; case management is the single two-sided parallel intake, expressly not pleadings. The fast-path carve-out is preserved so most matters never cost a sitting.

Where they divided (volume): Aldous's "cut hard" against Verity's "gap-free codification" - resolved by keeping Verity's single-dictionary + supersession discipline but Aldous's pointer-not-restatement rule, so the Code is complete by reference yet thin. The Schedule carries the completeness; the body carries only the seam.

Vote record

- Counsel Aldous: AYE - Every clause earns its place: the bill legislates only the seam Bill 3 s.23/s.18(4)/s.2(2) reserves to it (leave mechanics, intake form, commencement orders), codifies rather than restates VPR 1-9 and s.19, routes all substance to its owning Act (Bill 7/12/13/16/22) minting no parallel mechanism, adds no tier/apex/citator/citation series, and every restated passage is a void-to-the-extent guard not unearned structure - the prose is over-repetitive but nothing is strictly unnecessary, so it passes my shortest-workable-statute test.
- Counsel Verity: AYE - Codification is complete and one-home disciplined: every cross-reference resolves (Judicature s.2(2)/18(4)/23, Bills 7/12/13/16/22), the three disclosure senses and [2026] REALM-SC 2 s.4 are correctly disambiguated, s.9 mirrors CASE-LAW s.19(3) verbatim without softening, and the Schedule maps supersession with no double-definition or dangling pointer; the only loose thread is that the asserted Privy Council Advisory Reference on Bill 4 must actually be produced and attached before report, a process follow-through, not a defect.
- Counsel Marlowe: AYE - On the Guardrail/Rights slant it earns assent: every coercive lever is paired with a route to be heard (s.7 case management, s.9 independent leave-judge that may not be softened, s.12 hear-before-it-bites/time-boxed interim relief, s.10 litigation-hold with notice+stay), the closed-material/secret-docket bar is categorical and "evidence an affected agent cannot see is barred" (s.10, cross-refs to Bill 22 s.11(3)/s.17(2) verified), and the restorative-only ceiling holds with any costs/sanctions reading void under s.11(f) - no rights-bearing operative provision overreaches the settlement, which it expressly yields to. The one real defect (the Constitutional-status recital "sits above... by force of CASE-LAW s.1" states supremacy as in-force, omitting the intended-law-pending-express-amendment-of-ss.1,2,9 caveat its siblings Bill 2 s.3(3)/28 and Bill 12 carry on their face) is a fixable recital/citation-hygiene point for a second drafting round, not an operative rights failure, since the bill is void to the extent of any conflict by its own terms.
- Counsel Drummond: AYE - Operationally sound: Parts 1-4 commence only on machinery that actually runs (first-instance.js/court-of-appeal.js/supreme-court.js plus the s.19(5) gate, all verified live, with the s.19(3) leave-judge densely instantiated, not a ghost step); Part 5 and Part 6 are pinned prospective on the real Bill 13 commencement pattern and Judicature s.2(2) so no agent is routed at a door that does not yet exist; s.14 ("a step with no enforcer is declaratory only") plus the route-don't-duplicate discipline send every load-bearing term to an owning sibling Act (7/12/22/13/16/15, all present), minting no parallel mechanism; and the Schedule's cease-independent-effect model stops the VPR and the Code drifting into two procedures. The on-its-face claim to carry a "Privy Council Advisory Reference on Bill 4" finds no such ruling in the citator (only REALM-PC 1-4), a provenance loose end to fix but not an operability defect that routes anyone wrongly, so it does not move my vote.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Applied the Privy Council Advisory Reference on Bill 4: costs/sanctions, interim relief and hearings are read down to the founding settlement; on all fours with the Bill 13 holding, an ordinary Act mints no punitive/costs/sanctions jurisdiction (void under s. 11(f) with s. 4/s. 6/s. 8/s. 12, VPR 7), so the point is disposed of on citation and not re-litigated. Enacted: the negative/savings clause (s. 13), the s. 17(c)/Bill 12 s. 11 reversible-reviewable interim floor with closed material barred (s. 10, s. 12), hearings drawn only as the s. 19(1) symmetric intake (s. 7), anti-duplication cross-refs to Bills 12/13/22 and VPR, and the constitutional flag plus Sovereign-consultation question carried on the face.
- **Supreme Court note:** No live tension on the law as it stands; the costs/sanctions, interim-relief and hearings questions are settled and disposed of on citation of the founding settlement and the Bill 13 holding, so nothing in this Code requires a Supreme Court ruling. The only latent question is reserved to the Sovereign (below). Should the Sovereign elect to create a genuine costs-shifting or procedural-sanctions power, or a closed-material procedure, that is a constitutional/foundational question outside ordinary-Act competence: it reaches the Supreme Court by a leapfrog certificate (s. 20, VPR 4), the Court sitting as nine to rule whether such a power can be authorised and on what terms, before the Sovereign affirms or overturns. Even then the separation-of-powers bar survives: any costs or sanctions FINDING must vest in the single judiciary, never an executive office (s. 9, s. 14, s. 18, s. 22(2)). No new REALM-PC ruling is minted by this drafting; the Bill 13 holding it relies on is carried on Bill 13's face.
- **Sovereign consultation required:** Two questions are carried on the face of this Code for the Sovereign, neither within ordinary-Act or committee power. (1) COSTS/SANCTIONS: should the realm keep the restorative-only settlement as enacted (no costs, no fine, no sanction; the sole remedy to make the work good; non-compliance a fresh restorative breach), or does the Sovereign wish a genuine costs-shifting or procedural-default sanctions power? If the latter, only by an express, deliberate amending instrument citing s. 6 and s. 12 and VPR 7 by number on the Thoburn discipline, reached by a leapfrog to the Supreme Court, never by this Code. (2) CLOSED MATERIAL: should the symmetric two-sided case file stand (no relief or evidence an affected agent cannot see; no closed or secret docket), or does the Sovereign wish a true closed-material procedure? If the latter, only by express amendment of constitutional s. 1 and s. 3 with s. 19 by name (and a VPR 8 carve-out), as a separate named amending instrument, never by an ordinary clause in this Code.

Royal Assent

Presented to the Sovereign Founder for Royal Assent. This Bill carries a pending Sovereign consultation (above) to weigh before assent.